

JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

W. P. No. 36336 / 2025

Yasmin Saigol

VERSUS

Taimur Saigol and 04 others

JUDGMENT

Date of Hearing	16.06.2026
Petitioner(s) By:	Mr. Muhammad Saqib Jillani, Advocate Rai Asad Ahmed Dhudhi, Advocate
Respondent No. 1 By:	Mr. Saeed Ahmad Rana, Advocate
Proforma Respondents No. 4 & 5 By:	Nemo (Same interest as that of the Petitioner)

ABID HUSSAIN CHATTHA, J. This constitutional Petition is directed against the impugned Judgments & Memo of Costs dated 18.12.2024 and 19.05.2025 passed by Special Judge (Rent) and Additional District Judge, Lahore, respectively, whereby, Ejectment Petition filed by Respondent No. 1 (the “**Respondent**”) against the Petitioner and Proforma Respondents No. 4 & 5 was concurrently allowed while dismissing the application for leave to contest of the latter by directing to vacate the possession of the demised premises within two months from the date of eviction order and pay arrears of rent since June, 2001 @ Rs. 34,916/- per month till handing over the possession of the demised premises.

2. The brief facts of this case are that the Respondent instituted the Ejectment Petition averring therein that he is exclusive owner of the demised premises described as House No. 10, College Road, GOR-I, Lahore measuring 08 Kanals, 1 Marla & 176 Square Feet. The demised premises was purchased by his father through four registered sale deeds all dated 01.10.1974 and subsequently gifted to his mother through registered gift deed dated 22.02.1989. Upon the death of his mother and thereafter, his sister, Natasha Saigol, on 08.09.2023, the Respondent solely inherited the demised premises. The late father of the Respondent had inducted the

Petitioner into the front portion of the demised premises as a tenant under an oral tenancy at a monthly rent of Rs.34,916/-. After the death of the Respondent's father, the Petitioner stopped paying rent and instead instituted a suit for declaration and permanent injunction, claiming *benami* ownership of the demised premises. In the said suit, the Respondent's mother took the specific plea that the Petitioner was residing at the demised premises as tenant. Consequently, issue No. 11 was framed regarding her status as tenant and payment of rent. In support thereof, rent receipts Ex.D-8/A to Ex.D-8/C were produced. The Trial Court, vide Judgment & Decree dated 13.06.2014, decided the issue in favour of the Respondent's side while dismissing the claim of *benami* ownership of the Petitioner. The said Judgment was subsequently maintained up to the level of the Supreme Court of Pakistan. Relying upon the finding recorded against issue No. 11 in the declaratory suit, the Respondent asserted that oral tenancy of the Petitioner stood conclusively established and she is defaulter of rent since June, 2001. Accordingly, ejectment was sought alongwith recovery of arrears of rent for more than twenty four years.

3. The Petitioner in concert with the Proforma Respondents filed an application for leave to contest. The Petitioner vociferously contested the Ejectment Petition on the ground that no relationship of landlord and tenant existed between the parties. The alleged oral tenancy was unsupported by any independent or admissible evidence and that the Ejectment Petition was based upon findings recorded in the earlier declaratory suit. The Petitioner contended that, in the written statement filed in the declaratory suit, the Respondent's side had pleaded that she was permitted to reside at the demised premises as a licensee since 1982 and that rent, if any, was being paid by her brother or mother. No specific plea was taken that the Petitioner was a tenant. It was further alleged that issue No. 8 regarding possession of the Petitioner as a licensee and issue No. 11 with respect to tenancy were decided conjunctively by the Trial Court and, therefore, the finding qua tenancy was merely incidental to the principal issues regarding validity of *benami* transaction which did not establish any relationship of tenancy between the Petitioner and the Respondent. Thus, mere affirmative finding against issue No. 11 was inconsequential, particularly, when no independent

finding thereon was recorded by the first and second Appellate Courts and the Appeals of the Petitioner were dismissed on the basis of findings with respect to primary issues. Accordingly, it was prayed that leave to contest be granted and the Ejectment Petition be dismissed.

4. The Courts below concurrently held that the relationship of landlord and tenant stood established from the finding recorded against issue No. 11 in the declaratory suit. It was observed that the Respondent's side had produced certain rent receipts and the Trial Court, while rejecting the claim of *benami* ownership set up by the Petitioner and others, answered issue No. 11 in favour of the Respondent's side by accepting their plea that the Petitioner was in part possession of the demised premises as a tenant. Finding of the Trial Court against issue No. 8 qua possession of the demised premises of the Petitioner as a licensee was immaterial as the said issue was framed on account of stance taken by a co-defendant, namely, Mian Muhammad Saleem Saigol who is not a party to the Ejectment Petition. It was further observed that since the Petitioner herself had not claimed possession of the demised premises as a licensee in the declaratory suit, therefore, her plea of being a licensee is contrary to her earlier stance in the declaratory suit and thus, liable to be discarded. The denial of tenancy *ipso facto* establishes default of the Petitioner regarding payment of rent since June, 2001. Treating the alleged oral tenancy as a monthly tenancy, terminable upon one month's notice, it was noted that although no separate notice had been issued prior to the institution of the Ejectment Petition yet the filing of the Ejectment Petition itself would be construed as sufficient notice to vacate the demised premises. The Appellate Court also additionally observed that in view of continuous litigation between the parties from 2002 to 2024, the Ejectment Petition could not be regarded as barred by limitation. Accordingly, the Petitioner's application for leave to contest was dismissed and the Ejectment Petition was allowed in the manner stated above.

5. Arguments heard. Record perused.

6. It is well settled that the Punjab Rented Premises Act, 2009 (the "Act") is a special law promulgated with the objective to provide a special, speedy and efficacious mechanism to resolve disputes between a landlord

and tenant. Hence, the existence of a relationship of landlord and tenant is *sine qua non* for exercise of jurisdiction by the Rent Tribunal or to maintain an Ejectment Petition. Therefore, it is imperative for the landlord to establish the existence of relationship of tenancy with the tenant. In case, this relationship is not established, the question of payment or default of rent and determination of quantum of arrears of rent does not arise. Although, the scheme of law encapsulated in the Act envisions a written lease agreement between the landlord and tenant yet the Superior Courts have consistently adhered to jurisprudence that claims based upon oral tenancy also fall within the scope and ambit of the Act in the absence of any express bar contained in the Act. Hence, a claim of eviction and arrears of rent based upon an oral tenancy could be lodged before the Rent Tribunal under the provisions of the Act. Nevertheless, claims of oral or written tenancy must establish the existence of a valid relationship of tenancy between a landlord and tenant.

7. A bare reading of the Ejectment Petition reveals that the independent claim of tenancy is confined to the assertion that father of the Respondent rented out the front portion of the demised premises to the Petitioner against monthly rent of Rs. 34,916/- only on the basis of oral tenancy who was the real aunt of the Respondent's father and the Petitioner stopped paying rent immediately after the death of his father and chose to file the suit for declaration qua title of the demised premises.

8. The second limb of the claim rested upon an earlier suit for declaration filed by the Petitioner and others claiming right of ownership and possession as *benamidar* against the Respondent and others. In this respect, it was claimed that Respondent's mother as a co-defendant in the said suit had taken the stance in preliminary objection No. 9 that the Petitioner was residing at the demised premises as a tenant and issue No. 11 qua tenancy was framed in this respect. During evidence, rent receipts Ex. D-8/A to Ex. D-8/C were produced and since that issue was decided in favour of the Respondent, therefore, the Petitioner is a tenant of the Respondent and defaulter in payment of rent since June, 2001.

9. Applying the law to the facts of the case, it transpires that the claim of creation of alleged oral tenancy of the Respondent is deficient in material aspects. No date, time, place or year was pleaded with respect to

creation or initiation of oral tenancy. No names of the witnesses before whom such tenancy was agreed were disclosed. The date of death of the Respondent's father was not asserted. No specific mode and manner of payment of rent or any other terms and conditions of oral tenancy were listed. The particulars of portion of the demised premises alleged to have been rented out were not specified. Rather, it was merely stated in vague and uncertain terms that no rent was paid since June, 2001 without any explanation as to why ejectment proceedings were not initiated on account of continuous default of the Petitioner. The absence of aforesaid material facts were fatal to the case of the Respondent since the latter was precluded to supply for such omissions by producing evidence beyond pleadings.

10. The perusal of relied upon suit for declaration reveals that co-defendants therein had taken contradictory pleas regarding part possession of the demised premises by the Petitioner to the effect that the Petitioner was a licensee or a tenant. In this regard, issues No. 8 & 11 were framed by the Trial Court relating to the status of the Petitioner's possession as to whether she was occupying the demised premises as a licensee or a tenant. The following conjunctive finding was recorded by the Trial Court against issues No. 8 & 11:-

“Both these issues are inter-connected and inter-related thus are discussed and decided conjointly. Onus to prove these issues was placed upon defendants. Keeping in view the detailed scrutiny of evidence made in issues Nos. 1 to 5 Supra according to which defendant No. 1 has property in her name since 1974 having registered sale deeds in the name of her husband Umar Saigol coupled with the fact after taking into consideration the evidence of DW.1 (who is the real brother of the plaintiffs) that two of his brothers and he had been paying rent to Umar Saigol on behalf of their mother (also the mother of plaintiffs) thus preponderance of evidence tilts towards the contesting claimant i.e. defendant No. 1 thus these issues are answered in favour of defendants and are decided against plaintiffs.”

11. It is obvious from the above that the Trial Court did not render any definitive or conclusive finding regarding existence of oral tenancy between the parties. The rent receipts were produced in the statement of counsel and not confronted to the Petitioner. They were not even produced by the Respondent or his mother. There was no direct evidence of tenancy

and payment of rent by the Petitioner to the Respondent. More importantly, the issues were merely decided on the basis of preponderance of evidence to align the findings rendered against primary and pivotal issues qua *benami* transaction alleged by the Petitioner. The stance of the Petitioner qua possession of the demised premises in her said declaratory suit rested upon *benami* ownership and not on tenancy or licensee. Hence, reliance upon the ancillary findings not based on any conclusive and definitive evidence produced in the declaratory suit was legally misconceived, particularly, when the first Appellate Court, this Court and the Supreme Court while dismissing the Appeals / Petitions of the Petitioner's side with reference to the suit for declaration did not render any observation regarding issues No. 8 & 11. As such, the Respondent was required to independently allege the basic particulars and terms and conditions of oral tenancy in order to maintain his Ejectment Petition but he remained fail to do so, therefore, the Ejectment Petition was not maintainable as the relationship of landlord and tenant was not established.

12. There is no explanation in the Ejectment Petition regarding an inordinate delay of approximately twenty four years in filing the same although the pendency of civil proceedings between the parties do not operate as a bar to the institution of ejectment proceedings under the provisions of the Act. In the absence of any specific pleadings regarding the creation of oral tenancy, direct payment of rent by the Petitioner to the Respondent and plausible explanation for the prolonged inaction on the part of the Respondent and his predecessors, the claim of oral tenancy was merely a bald assertion, particularly, in view of admitted fact that the Petitioner is real aunt of the Respondent's father and she resided in the demised premises for a protracted period of time, notwithstanding that her suit of *benami* ownership could not succeed up to the level of Supreme Court. Needless to mention that claim of arrears of rent for the last twenty four years was also barred by time in terms of Article 110 of the 1st Schedule to the Limitation Act, 1908 which prescribes a period of three years when the arrears become due, as such, the Petitioner was precluded to claim rent beyond three years from the date of institution of the Ejectment Petition. For reference, see case titled, "Abdul Majeed v. Wazir Begum and 5 others"

(1996 SCMR 1681), wherein, it was held that rent beyond three years cannot be claimed.

13. The peculiar facts of the case apparently demonstrate that the Petitioner and the Respondent are members of the same family being closely related to each other. The Petitioner alongwith some family members had been living at the demised premises with the family of the Respondent. The rival claims of ownership *inter se* the parties qua the demises premises have been conclusively settled and attained finality. The Ejectment Petition was merely filed as an afterthought taking benefit of ancillary findings of the Trial Court in the declaratory suit. Mere fact that certain family members may have been residing at the demised premises would not *ipso facto* entitle the Respondent to file an Ejectment Petition without independently alleging and establishing the relationship of tenancy with the Petitioner. As noted above, the particulars of oral tenancy were materially deficient to establish the relationship of landlord and tenant between the parties, therefore, requiring the parties to produce evidence would be an exercise in futility as the Respondent cannot produce evidence beyond pleadings and in the absence of such relationship, the question of default and determination of arrears of rent does not arise, particularly, when it has been stated at the Bar that the Petitioner and the Proforma Respondents have vacated the demised premises and the only issue *inter se* the parties at present pertains to payment of arrears of rent. Even otherwise, rent jurisdiction conferred upon the Rent Tribunal under the Act is not a tool to obtain possession or dispossess the Respondent in the absence of tenancy for which independent remedies are available under the law. Hence, application for leave to contest of the Petitioner is accepted.

14. The next question that confronts this Court is that under the peculiar facts and circumstances of the case, should it be remanded to the Rent Tribunal to frame issues and record evidence or the Ejectment Petition be dismissed as not maintainable. At the cost of repetition, it is pertinent to mention that the nature, scope, mandate and ambit of the Act as a special law is restricted to regulate the relationship of landlord and tenant in respect of rented premises and provides a mechanism for settlement of their disputes in an expeditious and cost-effective manner. Under Section 4 of the Act, its

provisions have been given effect, notwithstanding anything contained in any other law for the time being in force. Section 22(1) thereof ordains that Rent Tribunal shall not allow the contesting party to defend the application for eviction without obtaining leave to contest. Section 22(6) thereof prescribes that if the leave to contest is refused or the respondent has failed to file application for leave to contest within the stipulated time, the Rent Tribunal shall pass the final order. In terms of Section 23 of the Act, if leave to contest is granted, the Rent Tribunal is required to treat the application for leave to contest as a written reply. Section 25(1) of the Act requires that at the time of grant of leave to contest, the Rent Tribunal shall direct a party to produce its evidence, while Section 25(5) thereof states that after recording evidence of the parties, if any, and hearing the arguments, the Rent Tribunal shall pass the final order.

15. It follows that ordinarily, upon granting leave, issues are framed and evidence is sought. However, there is no prohibition upon the Rent Tribunal upon grant of leave to forthwith dismiss the Ejectment Petition without recording of evidence if it is found that no relationship of landlord and tenant exists between the parties. The rationale for this course of action is that jurisdiction conferred upon the Rent Tribunal is limited and confined to settle rent disputes between the landlord and tenant with respect to rented premises. In case titled, “Jameel Qadir and another v. Government of Balochistan, Local Government, Rural Development and Agrovilles Department, Quetta through Secretary and others” (2023 SCMR 1919), the Supreme Court while elaborating the jurisdiction of the Court noted as follows:-

“The term 'jurisdiction' in the legal parlance means the command conferred to the Courts by law and Constitution to adjudicate matters between the parties. The jurisdiction of every Court is delineated and established to adhere to and pass legal orders. Transgressing or overriding the boundary of its jurisdiction and authority annuls and invalidates the judgments and orders. In order to deal with the different species of litigation, some Courts and Tribunals are vested with exclusive jurisdiction for taking cognizance of matters which other Courts cannot take under the rigidity or stringency of exclusive jurisdiction to deal with and decide the lis. No Court has the right to decide any lawsuit which is beyond the purview of its jurisdiction and want of jurisdiction conveys an action beyond the domain earmarked to any particular Court or Tribunal which cannot be cured, even by consent or acquiescence of parties.”

In case titled, “Muslim Commercial Bank Limited v. Punjab Labour Appellate Tribunal through Chairman, Lahore and others” (2025 SCMR 303), the Supreme Court further observed as follows:-

“If a decision is rendered outside the realm and jurisdiction, it is exclaimed and regarded as Coram non judice which is a Latin legal maxim meaning “not before a judge”. This expression is used to enumerate a proceeding which may be legal in nature but is outside the authority of a judge due to improper presence or lack of legal jurisdiction. Any order or decision passed without jurisdiction would be coram non judice and thus a nullity. It is the duty of the Court itself to apply the relevant law based on the admitted or proven facts, irrespective of whether it has been invoked or relied upon by a party. It is also envisioned in various judicial precedents that if a mandatory condition for exercise of jurisdiction by a court is not fulfilled, then the entire proceeding which follows becomes illegal and suffers from want of jurisdiction. If any order or decision is suffering from the vice of coram non judice it may be quashed and set aside by the Court.”

16. The next point of consideration is that what is the consequence if the grievance is initiated before the Court having jurisdiction but an adverse determination of a fact on which such jurisdiction rests is rendered by the Court. In the instant case, the Respondent was undoubtedly within his right to institute the Ejectment Petition based on oral tenancy before the Rent Tribunal but it was equally necessary and imperative for him to establish the relationship of landlord and tenant as a pre-requisite to maintain his Ejectment Petition. However, this Court, after considering the contents of the Ejectment Petition and leave to contest of the Petitioner, has reached to the conclusion that such relationship is neither established nor could be established even after provision of an opportunity to produce evidence, as such, the jurisdiction of the Rent Tribunal ceases to exist. Any further proceedings would enter into the arena of determination of general civil rights *inter se* the parties and would be beyond the jurisdiction of the Rent Tribunal. In other words, special jurisdiction vests in the Rent Tribunal under the provisions of the Act on the premises of existence of relationship of landlord and tenant between the parties and upon a definite finding to the contrary, further proceeding before the Rent Tribunal become *coram non judice* and without jurisdiction. Therefore, remanding the matter to the Rent Tribunal in the instant case would not serve any purpose since the Respondent did not independently plead the particulars of oral tenancy and as such, is precluded to produce evidence beyond pleadings, particularly,

when any other claim of the Respondent not based on oral tenancy such as possession or mesne profit in lieu of occupation of property can be preferred by availing other remedies available under the law. Needless to mention that a person can be in possession of a property through other means such as licensee or a trespasser and in such an eventuality, the jurisdictional constraint would restrict further exercise of jurisdiction by the Rent Tribunal. It was aptly noted in case titled, “Khadim Hussain v. Additional District Judge, Layyah and 12 others” (2023 YLR 729) as under:-

“Even otherwise, the failure of the petitioner to successfully challenge the title of the respondents does not ipso facto transform the relationship of the petitioner and respondents into that of tenancy as the possession of person may come in ways other than as a tenant (for instance as licensee, trespasser, etc.) and such possession may be recovered by owner having title by means and ways other than by filing an eviction petition. Thus, in order for an eviction petition to succeed and exercise of jurisdiction by the learned Rent Tribunal under the Act, 2009, it is necessary that the respondents establish their own case independent of the failure of petitioner to successfully challenge their title.”

17. It follows from the above that after conclusive determination of the fact that no relationship of landlord and tenant existed between the Petitioner and the Respondent, the Ejectment Petition of the Respondent is not maintainable within the ambit and scope of the Act being barred by law and on account of jurisdictional constraint of the Rent Tribunal under the Act. Hence, the Courts below have erred in law to allow the Ejectment Petition merely on the strength of earlier litigation which had no direct nexus with the claim of oral tenancy and did not serve as a substitute to independently allege and prove the factum of oral tenancy under the provisions of the Act.

18. In view of the above, this Petition is **allowed**; the impugned Judgments & Memo of Costs passed by the Courts below are set aside; and in consequence thereof, the Ejectment Petition of the Respondent is dismissed. Order, accordingly.

(Abid Hussain Chattha)
Judge

Approved for Reporting.

Judge